NDIS Manual

Module 5 Specialist Disability Accommodation

for One Life Foundation

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1- Applicable Practice Standards Policy & Procedure

1.1. Purpose

✓ The purpose of this policy & procedure is to sets out the relevant NDIS Practice Standards that apply to specialist disability accommodation providers.

1.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All participants and their families

1.3. Definitions

Word/Term	Definition
Participant	A person with a disability that has met the access requirements to become a participant of the NDIS.
NDIS	The National Disability Insurance Scheme
National Disability Insurance Agency (NDIA)	The NDIA is a Commonwealth statutory agency. The role of the NDIA is to implement the NDIS.
Local Area Coordinators (LAC)	Local organisations working in partnership with the NDIA to help participants, their families and carers access the NDIS. LACs will help participants write and manage their plans and also connect participants to mainstream services and local and community-based supports.
Applicant	A person or entity who has made an application for registration
Specialist Disability Accommodation Provider	A registered NDIS provider whose registration includes the provision of specialist disability accommodation supports.

Word/Term	Definition
Building Authority	A body or entity established by a State or Territory to administer or regulate the design, construction, renovation, alteration or extension of buildings, including plumbing and other service installations.
Specialist Disability Accommodation (SDA)	Housing provided by a NDIS registered provider to participants who require specialist housing solutions to assist with the delivery of their supports. SDA refers to the dwelling itself and not the support. Providers must be registered with the NDIS to provide SDA.
Supported Independent Living (SIL)	Assistance with and/or supervising tasks of daily life to develop the skills of individuals to live as autonomously as possible.
Type of SDA	SDA type (design category and building type)
New Build	A dwelling is a new build if all of the following apply: (a) a certificate of occupancy (or equivalent) was either: (i) first issued in relation to it on or after 1 April 2016; or (ii) issued in relation to it on or after 1 April 2016 following renovations or refurbishments resulting in the dwelling meeting the relevant minimum requirements in the SDA Design Category Requirements Guidelines for one or more of the design categories other than basic design; and (b) one of the following applies: (i) it is enrolled or will be enrolled to house five or fewer long-term residents (excluding support staff); or (ii) it is the home of a participant who intends to provide SDA to themselves (as a specialist disability accommodation provider) and to reside there with, and only with, the participant's spouse or de facto partner and children; and (c) all of the dwellings shared areas and the majority of its bedrooms and similar sized private rooms comply with the relevant minimum requirements in the SDA Design Category Requirements Guidelines for a design category other than basic design.
Existing Stock	(1) A dwelling can only be existing stock if it is not a new build and either subsection (2) or (3) apply. (2) A dwelling is existing stock if it is not a new build, and all of the following apply: (a) the dwelling does not have a certificate of occupancy issued as described in paragraph 21(a) above

Word/Term	Definition
	(b) the dwelling is enrolled or will be enrolled to house five or fewer long term residents (excluding support staff) (c) the dwelling has been, at some time between 1 July 2013 and 1 December 2016, primarily used as accommodation for people with disability who have an extreme functional impairment or very high support needs (d) the dwelling is not an aged care, health care or other facility that is not specifically intended for use as disability accommodation (e) the dwelling housed at least one resident who received disability related supported accommodation (or equivalent) payments from a State, Territory or Commonwealth Government at some time between 1 July 2013 and 1 December 2016; and (f) all of the dwelling's shared areas and the majority of its bedrooms and similar sized private rooms comply or substantially comply with the relevant minimum requirements in the SDA Design Category Requirements Guidelines for a design category other than basic design (3) A dwelling is existing stock if it is not a new build, and all of the following apply: (a) the dwelling does not have a certificate of occupancy issued as described in paragraph 21(a); (b) one of the following applies: (i) it is enrolled or will be enrolled to house five or fewer long-term residents (excluding support staff); or (ii) it is the home of a participant who intends to provide SDA to themselves (as a specialist disability accommodation provider) and to reside there with, and only with, the participant's spouse or de facto partner and children (c) all of the dwelling's shared areas and the majority of its bedrooms and similar sized private rooms comply with the relevant minimum requirements in the SDA Design Category Requirements Guidelines for a design category other than basic design
Legacy Stock	(1) A dwelling may only be legacy stock if it is not a new build. (2) A dwelling is legacy stock if the dwelling: (a) does not have a certificate of occupancy issued as described in paragraph 21(a) (b) is enrolled or will be enrolled to house more than five long-term residents (excluding support staff)

Word/Term	Definition
	(c) has been, at some time between 1 July 2013 and 1 December 2016, primarily used as accommodation for people with disability who have an extreme functional impairment or very high support needs (d) has housed at least one resident who received disability related supported accommodation (or equivalent) payments from a State, Territory or Commonwealth Government at some time between 1 July 2013 and 1 December 2016; (e) is not an aged care, health care or other facility that is not specifically intended for use as disability accommodation; and (f) all its shared areas and the majority of its bedrooms and similar sized private rooms comply or substantially comply with the relevant minimum requirements in the SDA Design Category Requirements Guidelines.
Intentional Community	(1) An intentional community is a residential community designed to have a high degree of social cohesion, achieved through teamwork and agreed shared values. (2) The members of an intentional community have chosen to live together based on common social values and have committed to the principle of mutual support. (3) An intentional community: (a) has a defined and explicit agreement under which residents have agreed to live in accordance with shared common values, including the principle of mutual support; and (b) is controlled by the members or residents and is not governed by a single entity such as a support provider; and (c) includes general market housing, and is not solely designed to provide supported accommodation services
SDA Building Type	SDA building type means one of the following: (a) **apartments**, which are self-contained units occupying only part of a larger residential building. Apartments are typically classified as Building Class 2 under the Building Code of Australia; (b) **duplexes, villas and townhouses**, which are separate but semi-attached properties within a single land title or strata titled area. The dwellings will be separated from one or more adjoining dwellings by a fire-resisting wall (although fire resistance is not required for Existing Stock). These may also include ancillary dwellings that are located on the same parcel of land as another

Word/Term	Definition
	dwelling (such as standalone villas or 'granny flats'). These types of buildings are typically classified as Building Class 1(a)(i), 1(a)(ii) or 3 under the Building Code of Australia; (c) **houses**, which are detached low-rise dwellings with garden or courtyard areas. Houses are typically classified as Building Class 1(a)(i), 1(b)(i) or 3 under the Building Code of Australia; (d) **group homes**, which are houses that are enrolled (or will be enrolled) to house four or five long-term residents. Group homes are typically classified as Building Class 1(b)(i) or 3 under the Building Code of Australia; (e) **larger dwellings**, which are enrolled (or will be enrolled) to house more than five long-term residents.
SDA Design Category	SDA design category means one of the following design types: (a) **basic** design, which refers to housing without specialist design features but with a location or other features that cater for the needs of people with disability and assist with the delivery of support services; (b) **improved liveability** design, which refers to housing that has been designed to improve 'liveability' by incorporating a reasonable level of physical access and enhanced provision for people with sensory, intellectual or cognitive impairment; (c) **fully accessible** design, which refers to housing that has been designed to incorporate a high level of physical access provision for people with significant physical impairment; (d) **robust** design, which refers to housing that has been designed to incorporate a high level of physical access provision and to be very resilient, reducing the likelihood of reactive maintenance and reducing the risk to the participant and the community; (e) **high physical support** design, which refers to housing that has been designed to incorporate a high level of physical access provision for people with significant physical impairment and requiring very high levels of support.
Service Agreement	An agreement between the SDA provider, SIL provider and a participant that describes what supports will be delivered and how they will be delivered.

Word/Term	Definition
	The agreement also sets out each party's responsibilities and obligations and how to resolve any problems that may arise.
Complex Home Modification	Modifications to a dwelling that are designed to address multiple complex needs of a participant that: (a) require structural alteration to the building; and (b) may require permits.
Long-Term Accommodation	Dwelling that is to be used as a permanent home and it is not to be used only for respite, emergency or temporary accommodation.
Permanent Dwellings	A dwelling that is fixed to the land and would not include a mobile home.
Single Parcel of Land	(1) For land located in the Australian Capital Territory, all the land comprised within a parcel of land for which a certificate of title has been issued under the *Land Titles Act 1925* (ACT) unless the land forms part of: (a) a 'parcel' within the meaning of section 5 of the *Unit Titles Act 2001* (ACT); or (b) a 'community title scheme' as that term is defined for the *Community Title Act 2001* (ACT); in which case 'parcel of land' means all of the land comprised within that arrangement. (2) for land located in New South Wales, all the land comprised in a 'folio of the Register' within the meaning of the *Real Property Act 1900* (NSW) unless the land forms part of: (a) a 'parcel' within the meaning of section 5 of the *Strata Schemes (Freehold Development) Act 1973* (NSW); (b) a 'parcel' within the meaning of section 4 of the *Strata Scheme (Leasehold Development) Act 1986* (NSW); (c) a 'parcel' within the meaning of section 4 of the *Strata Schemes Development Act 2015* (NSW); or (d) a 'community parcel', 'neighbourhood parcel' or 'precinct parcel' within the meaning of section 3 of the *Community Land Development Act 1989* (NSW); in which case 'parcel of land' means all the land comprised within that arrangement; (3) for land located in the Northern Territory, all of the land comprised within a 'lot' within the meaning of section 4 of the *Land Title Act* (NT), unless the land forms part of a 'unit titles scheme' within the meaning of section 10(1) of the *Unit Title Schemes Act* (NT), in which case 'parcel of land' means all of the land comprised within that arrangement;

Word/Term	Definition
	(4) for land located in Queensland, all the land comprised within a 'lot' within the meaning of the *Land Title Act 1994* (Qld) unless the land forms part of: (a) a 'mixed use scheme' within the meaning of section 3 of the *Mixed Use Development Act 1993* (Qld); (b) a 'building units plan' or a 'group titles plan' within the meaning of section 7 of the *Building Units and Group Titles Act 1980* (Qld); or (c) a 'community titles scheme' within the meaning of section 10 of the *Body Corporate and Community Management Act 1997* (Qld); in which case 'parcel of land' means all of the land comprised in that arrangement. (5) for land located in Tasmania, all of the land comprised within a 'folio of the Register' as that term is used in the *Land Titles Act 1980* (Tas) unless the land forms part of a 'scheme' within the meaning of section 3 of the *Strata Titles Act 1998* (Tas), in which case 'parcel of land' means all of the land comprised within that arrangement; (6) for land located in South Australia, all of the land comprised within an 'allotment' within the meaning of section 223LA(1)(a) of the *Real Property Act 1886* (SA) unless the land forms part of: (a) a 'strata plan' within the meaning of section 5 of the *Strata Titles Act 1988* (SA); or (b) a 'plan of community division' (also known as a 'community plan') including 'strata plans', within the meaning of Part 2 of the *Community Titles Act 1996* (SA) in which case 'parcel of land' means all of the land comprised within that arrangement; (7) for land located in Victoria, all of the land comprised within a 'folio of the Register' within the meaning of the *Transfer of Land Act 1958* (Vic) unless it forms part of a 'registered plan' within the meaning of section 3(1) of the *Subdivision Act 1988* (Vic), in which case 'parcel of land' means all of the land comprised within that arrangement; and (8) for land located in Western Australia, all of the land comprised within a certificate of title registered under the *Transfer of Land Act 1892* (WA), unless the land forms part of a registered 'strata/survey-strata plan' within the meaning of section 3 of the *Strata Titles Act 1985* (WA), in which case 'parcel of land' means all of the land comprised within that arrangement.

1.4. Relevant Documents

- National Disability Insurance Scheme (Quality Indicators) Guidelines 2020
- National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018
- National Disability Insurance Scheme Act 2013.
- Specialist Disability Accommodation Operational Guidelines
- National Disability Insurance Scheme (Supports for Participants) Rules 2013
- Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023
- Specialist Disability Accommodation: Decision Paper on Pricing and Payments
- NDIS Specialist disability accommodation page
- Form17.Legislative Compliance Register.
- Building Act and Regulations (NT)
- Residential Tenancies Act (NT)
- Housing Act (NT)
- Planning Act. (NT)
- Building Act 2000 (to be replaced by the Building Act 2016 on 1 January 2017) (TAS)
- Housing Indemnity Act 1992 (to be replaced by the Residential Building Contracts and Dispute Resolution Act 2015 on 1 January 2017) (TAS)
- Occupational Licensing Act 2005 (TAS)
- Housing Indemnity Act 1992 (TAS)
- Building and Construction Industry Training Fund Act 1992 (TAS)
- Residential Tenancy Act 1997 (TAS)
- Disability Services Act 2011 (TAS).
- Home Building Act 1989 (NSW)
- Building Professionals Act 2005 (NSW)
- Local Government Act 1993 (NSW)
- Residential tenancy act 2010 (NSW)
- Residential Tenancy Regulation 2019 (NSW)
- Environmental Planning and Assessment Act 1979 (NSW)
- State Environmental Planning Policy (Affordable Rental Housing) 2009
- State Environmental Planning Policy (Housing for Seniors or People with a Disability) 2004 (NSW)
- Disability Inclusion Act 2014 (until the later of 30 June 2018 or the implementation of the National Quality and Safety Framework) (NSW)
- Swimming Pools Act 1992 (where applicable) (NSW)
- Buildings
- Building Act 2004 (ACT)

- Construction Occupations (Licensing) Act 2004 (ACT)
- Building and Construction Industry Training Levy Act 1999.
- Tenancy and Occupancy (ACT)
- Residential Tenancies Act 1997 (ACT)
- Disability Services Act 1991 (ACT)
- Community Housing Providers National Law (ACT) Act 2013.
- Home Building Contracts Act 1991 (WA)
- Housing Act 1980 (WA)
- Building Act 2011 (WA)
- Strata Titles Act 1985 (WA)
- Building Services (complaint Resolution and Administration) Act 2011(WA)
- Building Services (Registration) Act 2011 (WA)
- Architects Act 2004 (WA)
- Building Services Levy Act 2011 (WA)
- Construction Contracts Act 2004 (WA)
- Dividing Fences Act 1961 (WA)
- Plumbers Licensing Act 1995 (WA)
- Emergency Management Act 2005 (WA)
- Environmental Protection Act 1986 (WA)
- Fire and Emergency Services Act 1998 (including Emergency Services Levy provisions) (WA)
- Fire Brigades Act 1942 (WA)
- Health Act 1911 (and relevant local government Health Local Laws) (WA)
- Land Administration Act (WA)
- Local Governments Act 1995 (WA)
- Occupational Safety and Health Act 1984 (WA)
- Occupational Health and Safety Regulations 1996 (WA)
- Planning and Development Act 2005 (and relevant policies) (WA)
- Relevant electricity, gas and water legislation (including residual current devices requirements under the Electricity Act 1945). (WA)
- Tenancy and Occupancy
- Residential Tenancies Act 1987 (WA)
- Residential Parks (Long-stay Tenants) Act 2006 (WA)
- Retirement Villages Act 1992 (WA)
- Dog Act 1976 (WA)
- Liquor Control Act 1988 (WA)
- Mental Health Act 2014(WA)
- Occupiers Liability Act 1985. (WA)

- Other relevant laws,regulations and policies thatproviders should be familiarwith(WA)
- Local Government(Miscellaneous Provisions) Act 1960(WA)
- Disability Services Act 1993 (WA)
- Association Incorporation Act 2015(WA)
- Criminal Code(WA)
- Equal Opportunity Act 1984(WA)
- Magistrates Court Act 2004 (and related Rules) (WA)
- Road TrafficAct 1974 (and related legislation) (WA)
- State Administration Tribunal Act 2004. (WA)
- Development Act 1993 (SA)
- Development Regulations 2008 (SA)
- Minister's Specifications (relate to specific building issues that require attention in South Australia referenced in the Development Regulations 2008) (SA)
- Planning, Development and Infrastructure Act 2016 (operation date TBA) (SA)
- The Real Property Act 1886 (SA)
- Community Titles Act 1996 (SA)
- Building Work Contracts Act 1995 (SA)
- Building and Construction Industry Security of Payment Act 2009 (SA)
- Building Code of Australia (National Construction Code) as it applies to South Australia (SA)
- Housing Improvement Act 1940 (pending replacement by Housing Improvement Act 2016) (SA)
- Residential Tenancies Act 1995 (SA)
- Water Industry Act 2012 (SA)
- Work Health & Safety Act 2012 (SA)
- Work Health & Safety Regulations 2012 (SA)
- Work Health & Safety Codes of Practice. (SA)
- Building Act 1975 (QLD)
- Building Regulation 2006 (QLD)
- Building Fire Safety Regulation 2008 (QLD)
- Fire and Emergency Services Act 1990(QLD)
- Queensland Building and Construction Commission Act 1991 (QLD)
- Sustainable Planning Act 2009(QLD)
- Body Corporate and Community Management Act 1997 (QLD)
- Building and Construction Industry Payments Act 2004 (QLD)
- Plumbing and Drainage Act 2002 (QLD)
- Professional Engineers Act 2002 (QLD)
- Subcontractors' Charges Act 1974 (QLD)

- **Residential Services (Accreditation) Act 2002 (QLD)**
- **Disability Services Act 2006 (QLD)**
- **Housing Act 2003 (QLD)**
- **Housing (Freeholding of Land) Act 1957 (QLD)**
- **Residential Tenancies and Rooming Accommodation Act 2008 (RTRA Act). (QLD)**
- **Building Act 1993(VIC)**
- **Building Code of Australia(VIC)**
- **Building Code of Australia Requirements for Fire Risk Management in NDIS Specialist Disability Accommodation- Practice instruction(VIC)**
- **Building Regulations 2006 (VIC)**
- **Occupational Health and Safety Act(VIC)**
- **Building and Construction Industry Security of Payment Act 2002(VIC)**
- **Domestic Building Contracts Act 1995(VIC)**
- **Residential Tenancies Act 1997 (VIC)**
- **Disability Act 2006 (VIC) (Disability Act)**
- **Supported Residential Services (Private Proprietors) Act 2010 (Vic).**
- **Offering Residency in Specialist Disability Accommodation Policy and Standards(VIC)**

1.5. Policy & Procedure

1.5.1. Compliance Management

✓ **One Life Foundation** has established, implemented and maintained a process to identify legislative requirements and has access to all legal and other requirements that are applicable to **One Life Foundation**'s operations using **Form17.Legislative Compliance Register.**

✓ The register will be reviewed and updated at least once a year or after any major changes to the legislation. The evaluation will be carried out by the **Management Team** and the results will be reported to **Managing Director.**

✓ If there are any changes/ updates in the legislative requirements, relevant policies and procedures will be reviewed and revised accordingly.

✓ All Workers are responsible for managing compliance within their areas of influence by following the current policies and procedures. The changes and updates will be communicated to the workers and staff through meetings or receiving email updates.

✓ Legislative compliance is maintained and updated through:

- Reviewing NDIS Commission Website
- Ongoing consultation and communication with Industry Specialists/Legal representatives
- Legal updates provided by government publishing
- External third-party audit
- Requirements set by the relevant state and/or territory

2- Rights and Responsibilities Policy & Procedure

2.1. Purpose

✓ The purpose of this policy & procedure is that each participant's access to specialist disability accommodation dwellings is consistent with their legal and human rights and they are supported to exercise informed choice and control.

2.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All participants and their families

2.3. Definitions

✓ Refer to Definition part of Applicable Practice Standards

2.4. Relevant Documents

- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018**
- **National Disability Insurance Scheme (Specialist Disability Accommodation**

Conditions) Rule 2016

- **National Disability Insurance Scheme Act 2013.**
- **Specialist Disability Accommodation Operational Guidelines**
- **National Disability Insurance Scheme (Supports for Participants) Rules 2013**
- **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023**
- **Specialist Disability Accommodation: Decision Paper on Pricing and Payments**
- **NDIS Specialist disability accommodation page**
- **Form28.Delegations of Authority Register.**
- **Form19.Privacy & Confidentiality Agreement.**

2.5. Policy & Procedure

2.5.1. Principles for SDA Dwellings

✓ The principles below underpin the process of **One Life Foundation** for our SDA dwellings:

- **Equity:** to ensure that all eligible participants are considered for SDA in a fair and transparent manner.
- **Consistency:** to ensure that decision making is undertaken in a reliable manner and that enough information is provided to make sound decisions.
- **Sustainability**: to ensure SDA offers are part of a long-term and proactive plan that takes into consideration the sustainable operations of **One Life Foundation**
- **Compatibility:** to ensure the physical, emotional, social and support needs of the current residents are taken into consideration when identifying a participant to offer SDA.
- **Safety:** to ensure that the support and safety needs of the current and prospective residents are addressed.

2.5.2. Culture, Diversity, Values and Beliefs Policy

✓ To Provide a diverse and inclusive service to the participants and their families **One Life Foundation** promotes following:

- Support culture diversity and promote the inclusive environment
- Support participants to play an active role in the community

- Finding participants' needs from consulting with their family members and carers
- Create an inclusive workplace for all staff and workers and respect their cultural, beliefs and language difference
- Ensuring that there is not any difference in service provision between participants and the rest of people in the society
- support people with CALD and Aboriginal and/or Torres Strait Islander (ATSI) background with their culture and spiritual beliefs

✓ At the direction of the participant, the culture, diversity, values and beliefs of that participant are identified and sensitively responded to.

✓ Each participant's right to practice their culture, values and beliefs while accessing supports is supported. At **One Life Foundation**, during the initial assessment participants are encouraged to talk about their culture, diversity and values and beliefs by using **Form20.Participant Intake Form.**

✓ **One Life Foundation**'s participants who English is not their primary language will be provided with interpretation support (if required) or in case of a meeting, these people would be able to bring a member of their family who speaks English.

2.5.3. Violence, Abuse, Neglect, Exploitation Policy

✓ It is the **One Life Foundation**'s commitment to ensure that everyone feels safe and treated fairly and the **One Life Foundation** is free of abuse, exploitation and neglect.

✓ Participant with lack of communication should be well supported to detect and prevent abuse.

✓ The **One Life Foundation** deals with the abuse, exploitation and neglect reports seriously and confidentially and take the best measures to mitigate the issue and punish the guilty person.

✓ Training is required for everyone in **One Life Foundation** to recognize, prevent and minimise abuse, exploitation and neglect.

2.5.4. Bullying, Harassment and Discrimination Policy

✓ **One Life Foundation** is committed to promote an environment free from bullying, harassment and discrimination for all employees and participant

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- ✓ **One Life Foundation** is committed to implement training and awareness raising strategies to ensure that all workers and staff are aware of their rights and responsibilities in relation to bullying, harassment and discrimination
- ✓ **One Life Foundation** is committed to comply with all relevant legislation and industry standards
- ✓ All forms of discrimination, harassment and bullying by or toward workers, participant is considered unacceptable and will not be tolerated under any circumstances.
- ✓ Everyone has a same right and responsibility relating to the sexual harassment.
- ✓ Victimisation including threatening any of who has made a complaint or helped another person to make complaints including the ones who may be involved in investigation process is subject to discrimination, harassment and/or bullying.

2.5.5. Privacy and Confidentiality policy

- ✓ **One Life Foundation** is committed to providing quality services and respecting your rights.
- ✓ Participant right to privacy and confidentiality will be recognised, respected, and protected in all aspects.
- ✓ In **One Life Foundation**, all information will be handled based on the NDIS Quality and Safeguarding Framework.
- ✓ Consistent processes and practices are in place that respect and protect the personal privacy and confidentiality of each participant.
- ✓ **One Life Foundation** ensures that all confidential documents are handled safely in our operations.
- ✓ **One Life Foundation** will not disclose any Confidential Information to any persons who are not employed by **One Life Foundation** or Participant unless consent has been obtained.
- ✓ **One Life Foundation** will not make any interest in review of confidential, secret and top-secret records / documents of the Company.
- ✓ **One Life Foundation** is committed maintain confidentiality of medical results
- ✓ **One Life Foundation** will not disclose, copy, release, sell, alter or destroy any confidential

information, either electronic or paper based unless it is part of my job.

✓ **One Life Foundation** is committed to protect the privacy of participant and workers.

2.5.5.1. Workers Responsibilities for Privacy and Confidentiality

✓ Workers will complete **Form19.Privacy & Confidentiality Agreement.**

✓ Workers responsibilities are as below:

- Workers will not disclose any Confidential Information to any persons who are not employed by **One Life Foundation** or Participant unless consent has been obtained. Privacy & Confidentiality Information includes but not limited to:
    a. Participant personal information and medical examination results and their families
    b. Workers, Contractors and Volunteers
    c. Business Information such as financial records, reports, memos, contracts, computer programs, technology
    d. Company processes and operations
    e. Company intellectual property
    f. Service specifications; and
    g. any other information regarding company activities that can have a detrimental impact to the Company.

2.5.6. Right to Access an Advocate Policy

✓ New participants will be consulted about their right to use advocates. **Form13.Advocate Nomination Form** can be used to nominate an Advocate.

✓ **One Life Foundation** will consult new participants about the Roles of advocates and how to get an advocate.

✓ It is participant's right to choose their own advocates, change their advocates or withdraw their advocate's authority.

- ✓ **One Life Foundation** participant's decision making, and service planning will be coordinated with participant's advocate.
- ✓ Any assistance by an advocate should be registered and documented
- ✓ If a participant doesn't have anyone to accept their advocacy, **One Life Foundation** will introduce someone as an advocate.

2.5.7. Information Management

- ✓ **One Life Foundation** is committed to protect the security of its information and information systems.
- ✓ Documents are stored with appropriate use, access, transfer, storage, security, retrieval, retention, destruction and disposal processes.
- ✓ According to the above direction all staff and workers are committed to:
    - Use of all reasonable, appropriate, practical and effective security measures to protect our important processes and assets in order to achieve our security objectives.
    - Protecting and managing information assets to enable us to meet our contractual, legislative, privacy and ethical responsibilities and satisfy applicable IS requirements and legal requirements
    - Protect the system against unauthorized access.
    - Report and investigate information security breaches.
    - Record keeping processes underpin day-to-day actions and **One Life Foundation** has an ongoing commitment to continuous improvement in this area.
- ✓ Records include all documentation retained in hard copy and electronically by **One Life Foundation** in relation to its organisational arrangements, services, Participants and staff.
- ✓ Information Management system should be in a way that:
    - limit the access to the information
    - the computer should be always password locked
    - modems shall have security in place
    - a strong password shall be applied to the wireless network

- ✓ All personal information of participant and staff and workers shall be:
    - Safely stored to restrict the access for any misuse
    - Not shared with any third party unless the participant or staff and workers has given consent
    - Retained for a limited period
    - Destroyed properly if not required
- ✓ Printed version of the Personal confidential information shall be stored securely when not in use
- ✓ The information security shall be treated as a vital part of the system.
- ✓ Social media for the purpose of marketing should be used by authorised people
- ✓ Confidential information including personal information shall not be posted on social media
- ✓ Portable devices including smartphones, laptops and portable storage devices shall be password locked

2.5.8. Delegation of Responsibility and Authority Policy

- ✓ This policy identifies the requirements for delegated responsibility and authority to another suitable person in the absence of a usual position holder in place.
- ✓ Workers with same qualifications and experience will be assigned as a delegate to ensure the same level of support is provided to the participants and adequate training will be provided to them.
- ✓ Delegation of Responsibility and Authority Policy within **One Life Foundation** is intended to achieve the following objectives:
    - Ensure supports are provided based on the least intrusive options;
    - Ensure the efficiency and effectiveness of supports;
    - Ensure that workers have been provided with the level of authority necessary to discharge their responsibilities;
    - Better understanding of supervision and delegation responsibilities;

- Feel confident in working safely with participant.

✓ When exercising delegated authority, all delegates shall act in good faith using all reasonable skills.

✓ The requirements set out in this policy apply to all workers. Delegation is managed through **Form28.Delegations of Authority Register.**

2.5.9. Communicating with Participants

✓ The agreements between the participants and the **One Life Foundation** will be responsive to the need of the participants and in an understandable mode of communication.

✓ The rights and responsibilities of the participants as well as SDA provider should be included in the agreement.

✓ **One Life Foundation** is committed to explain all policies and procedures related to the participants which may impact them through **Participant Handbook.**

✓ Meetings might be used as a method of communication with the participants and their advocate (if applicable).

✓ Annual events are in place to enhance the communication with the **Management Team** and participants will be invited to meet the organisation staff.

✓ Participants will be provided with an email on the website that enables them to contact the **Management Team**.

✓ A **Participant Handbook** will be provided to all newly joint participants including policies and procedures that participants may require as well as important required information about their accommodations.

✓ For the purpose of communication facilitation, the following strategies will be implemented:

- Information will be provided in a medium that suits the participants (e.g. large text, voice, braille)
- If required, professional interpreters will be used. If the participants wish to use their own interpreter who is not a professional interpreter, **One Life Foundation** will accept that it is their right to do so and their satisfaction is at the best interest.

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- Information should be provided in written and plain English
- Information should be explained to the participants verbally, if required.
- Key information should be communicated in a mode of language that is understandable for the participant and should be translated if required.
- Staff need to ensure that any information is shared with participants is done so in a form of communication that is aligned with their individual needs. Where required, written information should be provided in the first language of the participant. Furthermore, all communications should use basic language that the participant can understand. Where necessary, staff members should provide participants with advocates or interpreters. Interpreters would be available as below:

    - The Translating and Interpreting Service (TIS National) is an interpreting service provided by the Department of Home Affairs. https://www.tisnational.gov.au/

- If a participant has special communication needs, **One Life Foundation** will ensure that information is provided in an understandable mode of communication. There are some methods as following that will enhance the understanding of the information:
    - Liaison with the Guardian, Advocate, Person responsible or other person nominated by the tenant.
    - Bringing friends or family members of their own choice to the meetings with **One Life Foundation**.

3- Conflict of Interest Policy & Procedure

3.1. Purpose

✓ The purpose of this policy & procedure is that each participant's right to exercise choice and control over other NDIS support provision is not limited by their choice of specialist disability accommodation dwelling.

3.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All participants and their families

3.3. Definitions

✓ Refer to the first policy.

3.4. Relevant Documents

- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2016**
- **National Disability Insurance Scheme Act 2013.**
- **Specialist Disability Accommodation Operational Guidelines**
- **National Disability Insurance Scheme (Supports for Participants) Rules 2013**
- **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023**
- **Specialist Disability Accommodation: Decision Paper on Pricing and Payments**
- **NDIS Specialist disability accommodation page**
- **Form29.Conflict of Interest Register**
- **Form34.Conflict of Interest Declaration Form**
- **Form46.SDA Service Agreement**
- **Form22.Service Agreement.**

3.5. Policy & Procedure

3.5.1. Decision -Making Policy

- ✓ **One Life Foundation** is committed to our participants to have a control on the services provided to them and the decisions that might affects their life.
- ✓ **One Life Foundation** is committed to make sure that participants are satisfied with the received services and find out about their preferences and take the measures to provide participants with those preferred services.
- ✓ **One Life Foundation** is committed to provide services to participants that are aligned with their needs and preferences.
- ✓ Active decision-making and individual choice are supported for each participant including the timely provision of information using the language, mode of communication and terms that the participant is most likely to understand.
- ✓ Each participant's right to the dignity of risk in decision-making is supported. When needed, each participant is supported to make informed choices about the benefits and risks of the options under consideration.
- ✓ Each participant's autonomy is respected, including their right to intimacy and sexual expression.
- ✓ Each participant has sufficient time to consider and review their options and seek advice if required, at any stage of support provision, including assessment, planning, provision, review and exit.
- ✓ Each participant's right to access an advocate (including an independent advocate) of their choosing is supported, as is their right to have the advocate present.

3.5.2. Independence and Informed Choices Management

- ✓ It is everyone's right to choose their own personal, gender, sexual, cultural and religious identity. It is applicable to people with disability too and they can make their decision regardless of their situation.

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- ✓ Participants have the right to make their own decisions, to be free to live the life they choose, and to have the same rights and freedoms as any other member of the community.
- ✓ Participants and their carer will be advised by **One Life Foundation** about other services or agencies either in the organisation or outside the organisation to be able to make informed decisions.
- ✓ If the participant is assessed as not capable of making his or her decision, a substitute decision maker will be required and **One Life Foundation** will support them either formally or informally.
- ✓ In the case that participant is assessed as not being capable of decision making, there are different people that would be able to be nominated as substitute by their priority as below:
    - Any guardian who is appointed by an authority
    - Anyone who has a continuing relationship with the participant
    - An unpaid carer who has been arranged the care regularly
    - A close friend or relative

3.5.3. SDA Tenant Involvement in Decision Making

- ✓ For the purpose of planning, designing and providing services, the participants, their families as well as carers and other service providers will be engaged to review and adjust services.
- ✓ The participant should be involved in the process of decision making to make informed decisions about the services. Participants can seek advice from others to make the best and informed decisions.
- ✓ The following strategies may increase the involvement of the participants:
    - The decisions of **One Life Foundation** will be described to the participant in a mode of communication that is understandable for them.
    - Allowing time for participant to make decisions
    - Participants will have some time to make an informed choice
    - The participants are encouraged to seek advice from others if they required and **One Life Foundation** will assist them in seek advice from external resources.
    - participants will be made aware of their right to have an advocate participating in the discussions.

- In the process of decision making, the family members, friends and other community members are encouraged to participate, as directed by the tenant.

3.5.4. Conflict of Interest Policy

✓ Staff and workers should avoid any conflict of interest in their duties and personal interests.

✓ All employees will act in the best interests of participants and other customers, ensuring that participants are informed, empowered and able to maximise choices and controls. Staff members will not (by act or omission) constrain, influence or direct decision-making by a person with a disability and/or their family to limit that person's access to information, opportunities, and choices and controls.

✓ None of the staff and Workers shall misuse their position that ends to any personal benefit for themselves or anyone associated with them.

✓ The priority of all staff and workers shall be the advantage of the **One Life Foundation.**

✓ Worker and staff should not misuse **One Life Foundation** property, information and data for their own personal use.

✓ Any conflict of interest should be reported to the **management team** to avoid any possible conflict. If any conflict is recoded in **Form34.Conflict of Interest Declaration Form** and **Form29.Conflict of Interest Register**, proper corrective actions shall be taken to manage it.

✓ Everyone in **One Life Foundation** including workers, staff, **management team** and contractors shall have considered their actions as follows:

- What kind of conflict with my duties will be perceived?
- Is there any personal benefit involved in their action of duties?
- Is my involvement in any of the actions reasonable?

✓ Neither we nor our worker will accept any offer of money, gifts, services or benefits that would cause any one of us to act in a manner contrary to the interests of a NDIS participant. Further, staff and workers will not have any financial or personal interest that could directly or indirectly influence or compromise the choice of provider or provisions of supports to a participant. This includes the obtaining or offering of any form of commission by staff and workers or us.

✓ Each participant will be briefed about the Conflict of Interest and **One Life Foundation**'s staff and workers will ensure that the participant is aware of Conflict of Interest items using understandable mode of communication, language and terms.

3.5.5. Mitigating Risks Related to the Conflict of Interest

✓ The tenants will receive accommodation services from SDA service provider. Apart from that, they will receive supports from another service providers, too. This is an area for raising conflicts of interest as two service providers are working together. All conflicts of interest will be discussed with the tenants during the service agreement revision.

✓ The following actions will be taken to mitigate the risks related to conflict of interest:

- Ensure that tenants are aware of differences between SDA provider and service provider
- Ensure that each tenant receives independent support to understand the conflicts of interest and impacts on them
- Provide the workers and support team with the policies related to conflicts of interest
- If both accommodation and support services are delivered by us, we will have two separate agreements in place to differentiate elements of each delivery.
- Ensure that all applicable Acts and Regulations of both federal and states related to disability accommodation is in place and abide by.

4- Service Agreements with Participants Policy & Procedure

4.1. Purpose

✓ The purpose of this policy & procedure is that each participant is supported to understand the terms and conditions that apply to their specialist disability accommodation dwelling and the associated service and/or tenancy agreements.

4.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All SDA resident and their family

4.3. Definitions

✓ Refer to Definition part of Applicable Practice Standards

4.4. Relevant Documents

- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2016**
- **National Disability Insurance Scheme Act 2013.**
- **Specialist Disability Accommodation Operational Guidelines**
- **National Disability Insurance Scheme (Supports for Participants) Rules 2013**
- **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023**
- **Specialist Disability Accommodation: Decision Paper on Pricing and Payments**
- **NDIS Specialist disability accommodation page**
- **Form01.Risk Register**
- **Form46.SDA Service Agreement**
- **Form48.Tenancy Management Agreement**

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4.5. Policy & Procedure

✓ **One Life Foundation** is committed to provide SDA accommodation for participant or SDA residents or tenants who are an NDIS approved participant who has SDA in their plan. Tenancy services will be provided to them as following:

- Rent collection
- Keeping the property well maintained
- Undertake modifications if required.

✓ The service agreement using **Form46.SDA Service Agreement** and **Form48.Tenancy Management Agreement** are to be completed individually for the participant.

✓ **One Life Foundation** does not provide SDA for a participant unless either

(a) a written service agreement has been entered into between **One Life Foundation** and the participant in relation to the provision of the SDA; or
(b) **One Life Foundation**:
(i) has worked with the participant to establish a written service agreement in relation to the provision of SDA
(ii) has provided a copy of the proposed agreement to the participant
(iii) provides SDA to the participant in accordance with the terms of the proposed agreement

✓ Both parties will ensure that they have a set of agreed expectations and goals of what support and how they will be delivered. Service agreement will outline the responsibilities and obligations of both parties and how they will solve any arisen problem.

✓ Each SDA resident will be briefed about the service agreement and **One Life Foundation**'s staff and workers will ensure that the SDA resident is aware of service agreement items using understandable mode of communication, language and terms, for example, by using an Advocate or a translator.

✓ The SDA resident will receive a copy of the service agreement upon signing the agreement and a copy of the signed agreement will be kept as a provider's record.

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4.5.1. Responsibilities of One Life Foundation

✓ We at **One Life Foundation** will ensure that:

- The provided services meet the needs and expectations of the SDA residents
- SDA resident will be treated respectfully and communicated openly and honestly in a timely manner
- SDA residents' feedback and complaints are taken seriously and implemented in the improvement process
- Assist the SDA residents to make clear decisions and treat the SDA resident with courtesy and respect
- Avoid any conflict of interest between SDA residents and staff
- Regularly improve the services provided to the SDA residents and listen to the SDA resident's feedback and resolve problems quickly
- Retain information in a confidential way and protect the SDA resident's privacy and confidential information
- Everyone is living in a safe environment and any risk to the SDA residents will be mitigated as soon as possible
- Provide supports in a manner consistent with all relevant laws, including the National Disability Insurance Scheme Act and Rules, and the Australian Consumer Law; keep accurate records on the supports provided to the SDA resident
- The property is kept safe and secure at all time
- Each SDA resident receives a signed copy of this agreement.
- The contact details should always be up to date and communicated to the SDA resident if there is any change
- The property is fitted with adequate locks and security features to enable the home to be kept reasonably secure
- Comply with all relevant legislations, obligations and standards
- Appropriate insurance for workers compensation, public liability, professional indemnity and home and contents insurance must be in place and keep them up to date
- Key tenancy information should be communicated in a mode of language that is understandable for the tenant and should be translated if required.

✓ Obligations of **One Life Foundation** to all staff, SDA residents and other service providers must be fulfilled.

- ✓ If a tenant has special communication needs, **One Life Foundation** will ensure that information is provided in an understandable mode of communication. There are some methods as following that will enhance the understanding of the information:

    - Liaison with the Guardian, Advocate, Person responsible or other person nominated by the tenant.
    - Bringing friends or family members of their own choice to the meetings with **One Life Foundation**.
    - Engage an interpreter or translator

- ✓ **One Life Foundation** will ensure to take the best measures to manage any disagreement or complaint and listen to your feedback to resolve the problems as quickly as possible as per Feedback and Complaint Policy.
- ✓ **Management Team** ensure that SDA resident requests are dealt as soon as possible.

- ✓ If we require to make any changes to this agreement or end this agreement, provide a notice to them prior to implementing changes.

- ✓ Communication with each participant through **Participant Handbook**, the provision of supports which is responsive to their needs and is provided in the language, mode of communication and terms that the participant is most likely to understand.

4.5.2. Responsibilities of the Workers

- Have the required skills and training for support provision in a way that they can maintain the tenancy agreement
- Conduct a risk assessment as directed by the management personnel using **Form01.Risk Register.**
- Ensure that the SDA resident needs and expectation are met
- Ensure that the all risks to the tenant and anyone else in the organisation is managed and no harm will be to anyone
- Manage and record any complaints raised by the tenant
- Communicate with the tenant about any changes, corrective actions to the complaints and feedbacks
- Manage any required alterations prior to the start or during the agreement term
- Ensure that the tenancy agreement is described to the SDA resident before they sign it
- Managing any conflict of interest by:

- Document any arisen conflict of interest in the register
- Ensure to provide a clear and transparent advice and support to the SDA resident
- Ensure that all SDA resident are treated equally

4.5.3. SDA Resident' Responsibilities

✓ SDA resident are responsible to:

- Pay all tenancy charges and accommodation fees
- Treat **One Life Foundation** staff with respect and courtesy
- Not to make any damage to the property intentionally
- If they are planning any absence, inform **One Life Foundation** in advance
- Respect teh neighbour's rights and privacy
- If they wish to end the accommodation service agreement, give us a notice as agreed
- Maintain the dwelling so as not to cause a fire, health or safety hazard.
- Get the written agreement of the SDA provider before installing anything that cannot be easily removed without damaging the dwelling.
- Do not make any modifications without **One Life Foundation** approval
- Be respectful to the house rules and ensure that abide by them
- Provide access to the room for maintenance checks and repairs as agreed,
- Not use the property for any illegal purposes

4.5.4. Training of Workers

✓ All workers are selected based upon their initial education or training, their experience, specific areas of expertise, general demeanour and work ethic. Personnel employed, demonstrate that they have the competencies required for the position, as defined in the job description.

✓ Workers shall be requested to complete a **Form06.Worker Information Form** and sign relevant **Job Description** and **Worker Handbook**.

✓ All workers will undertake a comprehensive induction process using **Form08. Induction** checklist before engaging with participants.

✓ **Management Team** must ensure that the workers have conducted workers screening.

- ✓ **Management Team** must ensure that workers have undertaken any relevant required training using **Form09.Training Matrix**

4.5.4.1. Mandatory Checks

- ✓ Records of induction, Mandatory Checks, training and organisational and professional development provided to all workers will be kept on each worker's record and on Training Matrix **Form09.Training Matrix.**

- ✓ The below Items mandatory for all new workers, volunteers, agents, contractors and subcontractors before start:

a) Provide 100 points of identification

- ✓ **100 points proof of ID** – consists of a combination of at least one primary identification document and one secondary identification document. Secondary identification documents must include your full name, and your photograph or signature.

- ✓ Primary identification documents (70 points each) include:

  - Current AHRPA Registration
  - Birth Certificate
  - Citizenship Certificate
  - Current Passport
  - Expired passport that was not cancelled and was current within the preceding two years

- ✓ Secondary identification documents (40 points each) include:

  - Australian Drivers Licence
  - Identification card for an Australian public employee
  - Identification card issued by the Commonwealth, a State or Territory as evidence of entitlement to a financial benefit
  - State or Territory issued personal identification card
  - Student card issued by an Australian tertiary education institution

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b) Make sure that personnel have Right to Work in Australia

- Citizens must provide evidence of citizenship in the form of birth certificate, citizenship certificate or passport.
- Non-citizens must provide a copy of their passport or ImmiCard

c) Workers Screening

Who needs to be screened?

✓ Registered NDIS providers in all states and territories (except for Western Australia) have responsibilities and obligations in relation to screening their workers under the NDIS Commission. These are set out in the NDIS (Practice Standards – Worker Screening) Rules 2018.

✓ NDIS providers undergoing verification/ certification are responsible for assessing whether a worker may be required to undergo worker screening.

✓ A person employed or otherwise engaged by a registered NDIS provider will require worker screening if:

- They are in a role for which the normal duties are likely to require more than incidental contact with people with disability **(as defined in s6 of the NDIS Rules (Practice Standards – Worker Screening) Rules 2018)**
- They are in a role for which the normal duties include the direct delivery of specified supports or specified services to a person with disability
- They are Key Personnel. "Key Personnel" means individuals who hold key executive, management or operational positions in an organisation, such as directors, managers, board members, chief executive officer or chairperson. You must disclose the requested information for all key personnel.

✓ **Evidence to meet worker screening requirement**

- The NDIS Commission website includes information about the current requirements for worker screening in each state and territory. You can find in here

4.5.5. Service agreement Requirements

✓ All areas of impact to the tenancy should be covered in the **Form46.SDA Service Agreement** and **Form48.Tenancy Management Agreement.**

✓ Following information is included in the **Form46.SDA Service Agreement** and **Form48.Tenancy Management Agreement:**

- Property details including it address, whose furniture is in use etc.
- all information related to the parties of the agreement such as their contact details
- clauses regarding:
  - Rights and responsibilities of both the tenant and us
  - The rights of our SDA resident in our properties and being in line with the regulatory requirements
  - Termination of this service agreement
  - Service bookings (including consent for the creation of service bookings)
  - Complaints, grievances and conflict resolution
  - Responsibilities and relationships between different parties
  - Cancellations, including temporary service breaks and absence
  - Privacy, indemnities, risk and assurance
  - Payment terms including the reasonable rent contribution and payment is received for supports delivered and GST exemption
  - Managing changes to the agreement
- a schedule of support that includes, but is not limited to (to be updated when support changes):
  - how support is provided
  - the type of support to be provided
  - the cost of support, with a total dollar value provided
- the purposes of the accommodation service agreement (e.g. to provide accommodation, to support independence etc.) and key terms
- the safety features of the property including fire alarms, fire extinguishers, fire blanket, evacuation procedures and emergency contacts
- the start and end dates of the accommodation service agreement

✓ The following items should be included in the service agreement:

- Property damage- in the case of any property damage, the tenant will be known about the process of repair. We will support them to find another room during the period of repair.

- Record will be kept from any communication between parties as well as any repair, rent payment and so on.
- Modifications to the property, if required, alterations should be provided to the SDA resident to ensure their accessibility.
- House rules- these rules will be agreed between SDA resident and **One Life Foundation.**
- Inspection and access- from time to time some regular inspections will be in place to ensure that the property is in a good repair. This could be for cleaning, emergency repairs, maintenance, upgrades and renovation.
- Feedback, complaint and dispute- the complaint policy is in place which will be communicated to the tenants.

✓ People who are intending to move to a property should know about the service agreement. Therefore, we have ensured that this service agreement is in an understandable mode of language including easy read version.

✓ SDA resident must understand some of the important information in the agreement prior to signing and moving into the property. This information is highlighted in the services agreement by formatting and ordering of the items. If required, this information should be discussed with the potential SDA resident.

✓ Some information will be collected from the SDA resident when a new agreement is signed. **One Life Foundation** is committed to ensure that all sensitive information including medical and personal information are kept confidential. Our operations will be compliant with the privacy laws and a consent will be obtained from the tenant to be able to share information if required. SDA resident can withdraw their consent any time.

4.5.6. Changes to Service Provider

✓ If the SDA resident or **One Life Foundation** wants to change this agreement, they shall make any changes they have talked about and agreed to in writing. The written changes should be dated and signed by the SDA resident and **One Life Foundation**.

✓ **One Life Foundation** notify the participant in writing within 5 business days of any changes during the agreement of the matters provided.

✓ The SDA resident is agreeing to use the same accommodation provider in the **first two years** of the agreement. However, their service provider could be changed under the following

circumstance:

- the NDIS de-registers the service
- the contract with the service provider is terminated by the accommodation provider and they are no longer able to access the property
- the service provider become insolvent

✓ in the cases that the tenant wishes to change the service provider, we must be notified in writing as soon as possible. Upon agreement, a copy of the accommodation service agreement will be sent to the new service provider.

4.5.7. Ending an Accommodation Service Agreement

✓ **SDA Resident' Rights –** A 90 days prior notice should be provided to **One Life Foundation** if the tenant wishes to end the **agreement**. All accommodations fees must be paid during this period as per the agreement unless it is agreed by **One Life Foundation** that payment is not required.

✓ **One Life Foundation** give the SDA resident a minimum of 90 days' notice before the **SDA resident** is required to vacate the premises, unless shorter notice is required to address risks of harm to the SDA resident or others.

✓ **One Life Foundation's Right:**

- Prior to giving tenant an ending notice, **One Life Foundation** needs to have arrange a meeting with the tenant and their representative to ensure that they have taken all measures to enable the tenant to remain at the property.
- If both parties reach to an agreement, the required actions will be implemented to rectify the problem. **One Life Foundation** should allow enough time to check if the cause of problem has been eliminated and then agrees not to end this agreement.

Ending this SDA Tenancy Agreement in the First Two Year:

✓ The agreement may not be terminated in the first two years by **One Life Foundation** unless one of the following occurs:

- The property has been used for an illegal practice
- The accommodation fees are not paid as been agreed to
- The delayed payment of accommodation is not paid within 14 days of receiving overdue notice

- The SDA is no longer covered in your NDIS plan
- SDA resident put someone else or themselves at the risk of harm

✓ During the first two years of this agreement, if any of the above mentioned occurred, **One Life Foundation** will contact NDIS to assist us with the resolution. Upon confirmation of the NDIS of not being appropriate to have the tenant in the property, **One Life Foundation** will try to find the tenant some alternatives with the support of NDIA and will end the agreement by providing a notice.

4.5.8. Notifying the Commissioner:

✓ **One Life Foundation** will notify the Commissioner in writing as soon as possible, or within 5 working days if any of the following circumstances arise in relation to an SDA dwelling that is currently enrolled:

(a) there is a change in the SDA design category or SDA building type of an SDA dwelling; and
(b) the SDA dwelling is no longer suitable to be used for SDA; and
(c) there are circumstances that are likely to change the SDA design category, SDA building type or the suitability of a dwelling they have enrolled for providing SDA.

5- Enrolment of SDA Properties Policy & Procedure

5.1. Purpose

✓ The purpose of this policy & procedure is that each SDA resident's specialist disability accommodation dwelling meets the requirements of the design type, category and other standards that were identified through the dwelling enrolment process.

5.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All SDA residents and their families

5.3. Definitions

✓ Refer to Definition part of Applicable Practice Standards

5.4. Relevant Documents

- **SDA Design guidline**
- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2016**
- **National Disability Insurance Scheme Act 2013.**
- **Specialist Disability Accommodation Operational Guidelines**
- **National Disability Insurance Scheme (Supports for Participants) Rules 2013**
- **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023**
- **Specialist Disability Accommodation: Decision Paper on Pricing and Payments**
- **NDIS Specialist disability accommodation page**
- **c**
- **Form47.SDA Inspection Checklist**
- **Form03.Improvement Report Form**
- **Form57.Preventative Maintenance Plan**

5.5. Policy & Procedure

5.5.1. Dwelling Management

✓ **One Life Foundation** is committed to not provide SDA in a dwelling, unless that dwelling has been enrolled in accordance with this **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018 and relevant** State and Federal legislations.

✓ **One Life Foundation** is committed that our dwelling shall meet each of the following requirements:

(a) the dwelling is a permanent dwelling
(b) the dwelling will provide long-term accommodation for at least one SDA resident

(c) the Commonwealth and participating jurisdictions do not (as at the date of application for enrolment) provide funding for accommodation in respect of the dwelling under a scheme unrelated to disability

(d) the dwelling meets all relevant building codes, standards and laws;

(e) if a density restriction applies to the dwelling, the density restriction for the relevant parcel of land must be satisfied immediately before the enrolment;

(f) either:

(i) the specialist disability accommodation provider owns the dwelling to be enrolled; or

(ii) the owner of the dwelling:

(A) has acknowledged in writing that the dwelling is to be enrolled as an SDA dwelling; and

(B) has not separately enrolled the dwelling as SDA;

(g) the dwelling is one of the following:

(i) a New Build;

(ii) Existing Stock; or

(iii) Legacy Stock.

✓ **One Life Foundation** is committed to ensure that each SDA dwellings' design, provision and management, complies at all times with:

(i) the landlord, tenancy, building, and health and safety laws of the State or Territory and local government area in which the SDA dwelling is located; and

(ii) applicable building standards such as **National Construction Code(NCC)Vol 1 and 2, As 1428.1, AS/NZS 1428.4.1, AS/NZS 2890.6, AS 1735 and NDIS Specialist Disability Accommodation Design Standard**;

(iii) any other applicable laws or standards of the Commonwealth, State or Territory and local government area in which the SDA dwelling is located; and

✓ **One Life Foundation** is committed to ensure that any persons employed or otherwise engaged by the provider comply at all times with:

(i) the landlord, tenancy, building, and health and safety laws of the State or Territory and local government area in which the SDA dwelling is located; and

(ii) applicable building standards and codes; and

(iii) any other applicable laws or standards of the Commonwealth, State or Territory and local government area in which the SDA dwelling is located.

5.5.2. Design Management

✓ The appropriate building type for an SDA resident is to be determined by **One Life Foundation**, having regard to:

(a) the SDA resident's preferences, if those preferences are established and align with the SDA resident's statement of goals and aspirations

(b) the features of the building type

(c) the support model that is most appropriate for the SDA resident including immediately available or constant person to person supports

(d) the SDA resident's support needs; and

(e) whether the building type would represent value for money in that the costs would be reasonable, relative to both the benefits achieved and the cost of alternatives

✓ As well as the extent to which the building type would:

(f) facilitate social and economic participation, in particular how the building type would impact on:
(i) the participant's ability to engage in the life of the household and community; and

(ii) the dynamics of the household, having regard in particular to the SDA resident's ability to share with others and build relationships;
(g) facilitate past, established or planned connections or the continuation of established connections, in particular of culture or community;

(h) increase, reduce or mitigate the risks to the SDA resident and others, having particular regard to the SDA resident's response to risk and the interaction of the SDA resident with the environment;

(i) improve life stage outcomes for, and be of long-term benefit SDA resident to, the SDA resident;

(j) impact on the SDA resident's capacity or capability, in particular, the extent to which a building type would:
(i) alleviate the impact of the SDA resident's impairment on their daily functioning;

(ii) enhance the SDA resident's skill development, in particular independent living skills;

(iii) increase the benefit and effectiveness of supports other than SDA for the SDA resident's skill development, in particular independent living skills; and

(iv) enhance the opportunity for a move to accommodation other than SDA, or to lower cost SDA, in particular through a transition period with intensive capacity building supports;
(k) facilitate or sustain informal supports, and the extent to which informal supports would reduce the cost of other supports;
(l) facilitate or hinder the provision of other supports required by the SDA resident; and
(m) facilitate access to other support or specialist services required by the SDA resident which are not funded or provided through the NDIS.

5.5.3. Design Type

✓ There are four types of property designs suitable for SDA as per the new SDA Design guideline. They are:

- **improved liveability** design, which refers to housing that has been designed to improve 'liveability' by incorporating a reasonable level of physical access and enhanced provision for people with sensory, intellectual or cognitive impairment;
- **fully accessible** design, which refers to housing that has been designed to incorporate a high level of physical access provision for people with significant physical impairment;
- **robust** design, which refers to housing that has been designed to incorporate a high level of physical access provision and to be very resilient, reducing the likelihood of reactive maintenance and reducing the risk to the SDA resident and the community;
- **high physical support** design, which refers to housing that has been designed to incorporate a high level of physical access provision for people with significant physical impairment and requiring very high levels of support.

From 1st July, 2021, all dwelling enrolment applications for Specialist Disability Accommodation (SDA) will be required to include a certificate from an Accredited SDA Assessor nominating the Design Category the dwelling to be enrolled satisfies based on the Design Standards established in this document.

Every Property could be certified to a either of the above design categories in two stages:

2. **Provisional- Design Certification of SDA Dwelling:** The dwelling design can be certified as compliant with the design requirements of a particular design category when the design has been submitted for building approval to a regulatory authority such as a council or a certifier. The certification is called 'Provisional' as the dwelling has not been built at this stage.
3. **Final-as-built Certification of SDA dwelling:** The dwelling shall be certified as a particular Design Category when the dwelling is built with the relevant features as listed in the Design requirements section of this SDA Design Standard document. Only a built dwelling can get a Final certification suitable for NDIS enrolment.

5.5.4. Dwelling Enrolment Form

✓ Based on the **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023** guidelines the dwelling enrolment will be submitted to the NDIS to enrol the properties. The following information should be included in this form.

- Type of SDA (existing stock, new build, new build refurbishment or legacy stock)
- Maximum number of residents
- Design category (basic, improved liveability, fully accessible, robust, high physical support)
- other property features, e.g. a breakout room
- shared land restrictions (for new build only)
- intended residents.
- building type (apartment, villa/duplex/townhouse, house, group house or legacy stock)
- on-site overnight assistance

Completed Dwelling Enrolment Forms must be emailed to: SDARegistration@ndis.gov.au .

5.5.5. Partners

✓ For delivering a successful accommodation service, the following items will be identified before enrolling the property:

- a day-to-day assistance is provided by the Support Independent Living (SIL) providers following the **Form66.SDA & SIL agreement**
- Unmet needs and expectations of the SDA resident are in place with the support of local carer groups and support providers
- Accessible design is provided by the external advisors

5.5.6. Property Enrolment

✓ SDA registration with the NDIS is in place and will be maintained.

✓ The following will be considered in choosing the right site for SDA:

- NDIS locations are prioritised
- Local needs are considered
- Access to amenities and transport are considered
- Density restrictions are followed
- Ensure that it is one of the NDIS SDA type of building
- Ensure that the building is certified with LHA

✓ Ensure that each property:

- Is designed for maximum of 5 people
- Is a permanent home to the SDA residents
- Is designed for long term accommodation
- Is not a part of a wider accommodation scheme such as aged care
- All required modifications are in place
- The agreement fees determined by NDIS are in place
- There is a high level of accessibility in place
- All buildings are compliant with the National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rules 2018 and relevant acts and regulations
- No previous NDIS funding is received

✓ By submitting a Dwelling Enrolled form to the NDIS, all SDA properties are enrolled.

5.5.7. Good State of Repair

✓ **One Life Foundation** is committed to ensure ongoing compliance with the *National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rules 2018* and all relevant laws and standards, including building standards and tenancy laws that apply to specialist

disability accommodation dwellings

- ✓ **One Life Foundation** must ensure that dwellings enrolled by the specialist disability accommodation provider are in a good state of repair and are being appropriately maintained, having regard to the safety, security and privacy of the residents; and
- ✓ **One Life Foundation** shall provide an annual declaration that they meet the conditions.

5.5.8. SDA Dwelling Safety

5.5.8.1. Inspections

- ✓ **One Life Foundation** regularly inspects living environment using **Form47.SDA Inspection Checklist** to identify any hazards. The frequency of those inspections will depend on the degree of risk found in each area. As a minimum each area should be inspected once every 6 months. Any hazard found should be recorded on the checklist and fixed as required to eliminate or minimize the risk.

5.5.8.2. Hazards and Safety Concerns

- ✓ **One Life Foundation** encourages SDA resident to raise any issue and concern related to their living environment. All the reported issues will be recorded in **Form03.Improvement Report Form** with the corrective actions.

5.5.8.3. Fire Safety

- ✓ The environment of the SDA homes is checked annually for compliance with fire safety regulation. in addition, all fire safety systems will be checked every 6 months by an authorised provider.
- ✓ **One Life Foundation** should immediately be informed by SDA resident if there is any fire safety risk in their homes.
- ✓ All records of fire safety system are recorded including certification.

5.5.8.4. Fire Hazards

- ✓ As defined by fire regulations, people who are living in a unit, should not place anything in the hallways that blocks the pathways to the exit. In addition, no item should be kept under stairs.

- ✓ Every plant that may cause fire including dead vegetation should be removed immediately by the tenant if they are in charge of the gardening and lawns.
- ✓ **One Life Foundation** will contact the tenant if there is any vegetation that is susceptible to fire. If the items are not removed as per the agreement, then the tenant is liable for the cost of removal.

5.5.8.5. Orientation to Building

- ✓ SDA resident will be provided with information regarding the safety issues like evacuation procedure and will also be briefed on the alarms and safety features in the orientation process.
- ✓ Service providers will be inducted to the building features as well. This induction includes all required information on safety issues and evacuation procedures.

5.5.8.6. Safety Exercises

- ✓ The fire alarm system will be checked at least once a year in a fire drill practice.

5.5.9. SDA Preventative Property Maintenance

5.5.9.1. Planned Maintenance

- ✓ The property will undergo a maintenance on a scheduled and regular basis to ensure the safety of the property as well as protecting the value of the property assets.
- ✓ Any repair or upgrading work that could be done on a planned and scheduled basis, is called planned maintenance, such as painting, carpet replacement, bathroom renovation, etc.
- ✓ The planned maintenance is done in a specific time frame.
- ✓ For the purpose of timely maintenance of the properties, **One Life Foundation** has agreed to do a 10-year rolling cyclical maintenance plan for the capital properties. In addition, leaseholds will be maintained as required by the lease agreement.

5.5.9.2. Procedures for Planned Maintenance

- ✓ A **Form57.Preventative Maintenance Plan** will be provided to the relevant manager by the **Managing Director**.

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- ✓ The maintenance plan will be updated all the time and should include the required scope of work within estimated timeframe by using the plan.
- ✓ the **Managing Director** will ensure that the maintenance is undertaken by some approved contractors in a timely manner.
- ✓ The records of maintenance will be kept on the system to give this opportunity to the **Managing Director** to check all works done and the progress of planned works. This will help the **Managing Director** to generate the required reports, too.
- ✓ If the amount of a maintenance is more the allocated amount in the maintenance plan the following actions should be undertaken:
    - A quote should be obtained from specialist trades. The approved subcontractors have the priority to others.
    - The contractors should be licensed for the work they are planning to undertake and should have the required insurance.
    - Before work commencement, the contractors who are not from the approved contractors list, should sign a contract agreement.
    - The quoted price and preferred timeframe by **One Life Foundation** will be provided to the contractor in the work orders.

5.5.9.3. Length of Time for Repairs and Maintenance

- ✓ All **Form57.Preventative Maintenance Plan** in the maintenance plan. SDA resident requests will be considered in the scheduled maintenance to be brought forward or delayed.

5.5.10. Occupational Health and Safety Policy

- ✓ **One Life Foundation** is committed to support the health, safety, and welfare of all people we employ and to the participant and people affected by our undertakings.
- ✓ **One Life Foundation** continuously supports improvements of workplace health and safety by adopting a planned systematic approach to Occupational Health and Safety. This approach includes risk management and consultation.
- ✓ One of our primary commitments is to ensure that everyone in the organization receives an appropriate work health and safety support.

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- ✓ Business requires a safe work environment to have a long-term success and comply with requirements and standards.
- ✓ None of the workers shall undertake unsafe works and participants should not tolerate any unsafe workplace. Every task that a staff and workers is not trained for it shall be reported to the **One Life Foundation**.
- ✓ To have a safe environment in **One Life Foundation**, all workers shall receive adequate WHS training. In addition, workers need to know about the new roles and responsibilities.
- ✓ **One Life Foundation** management will ensure that the everyone in the organization including participants, their families as well as workers and staff are in a safe environment.
- ✓ **One Life Foundation** is committed to Ensure that each participant can easily identify workers engaged to provide the agreed supports.
- ✓ Where supports are provided in the participant's home, work is undertaken with the participant to ensure a safe support delivery environment.
- ✓ Where relevant, work is undertaken with other providers and services to identify and treat risks, ensure safe environments, and prevent and manage injuries.
- ✓ **One Life Foundation** is committed to report all workplace injuries, near misses and illnesses caused by work immediately to manager and also ensure that all accidents, hazards and near misses are recorded and reported, and an investigation is carried out to determine possible causes in line with Incident Management Policy and Procedure.

5.5.11. Design standard exemptions

- ✓ According to the Specialist Disability Accommodation (SDA) Design Standard dated as 31st of October 2019, In recognition of current SDA developments underway, the NDIA has adopted a phased approach to the introduction of the SDA Design Standard as a mandatory requirement for Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023. Developments that have commenced and meet the evidentiary requirement (as described in the paragraph below) should provide the NDIA with notice that the development may not be completed prior to 1 July 2021 and therefore should be subject to an exemption from the SDA Design Standard (which becomes the mandatory requirement from 1 July 2021).
- ✓ On that basis a commitment/commencement date is considered the first date that a financial

commitment to acquire or develop an SDA dwelling was made and can be evidenced by an agreement generally recognisable as indicating a commitment to undertake the project, including a contract of sale (excluding land contracts), development agreement, planning permit, or construction certificate. In principle agreements and Memoranda of Understanding are specifically excluded from the list of satisfactory exemption evidence.

5.5.12. Design Standard Exemption

✓ **One Life Foundation** can apply for an exemption for dwelling completed any time after 1 July 2020. The exemption may be granted if :

- A significant financial commitment has been made to the new SDA Design standard
- There is not a possibility to alter the project plan to the new SDA Design Standard.

✓ NDIS will solely grant the exemption under SDA Operational Guidelines. In addition, SDA Exemption Form needs to be completed to apply for an exemption.

6- Tenancy Management Policy & Procedure

6.1. Purpose

✓ The purpose of this policy & procedure is that each participant accessing a specialist disability accommodation dwelling is able to exercise choice and control and is supported by effective tenancy management.

6.2. Scope

✓ This document applies to:

- All **One Life Foundation** staff and workers, whether permanent or casual, contractors, volunteers or business partners.
- All participants and their families

6.3. Definitions

✓ Refer to Definition part of Applicable Practice Standards

6.4. Relevant Documents

- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2018**
- **National Disability Insurance Scheme (Specialist Disability Accommodation Conditions) Rule 2016**
- **National Disability Insurance Scheme Act 2013.**
- **Specialist Disability Accommodation Operational Guidelines**
- **National Disability Insurance Scheme (Supports for Participants) Rules 2013**
- **Specialist Disability Accommodation (SDA) Dwelling Enrolment April 2023**
- **Specialist Disability Accommodation: Decision Paper on Pricing and Payments**
- **NDIS Specialist disability accommodation page**
- **Form47.SDA Inspection Checklist**
- **SDA Attestation Form**
- **Form02.Complaint Report Form.**
- **Form04.Incident Report Form**

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6.5. Policy & Procedure

6.5.1. SDA Tenant Rights and Responsibilities

✓ Tenants of **One Life Foundation** have the following rights under the Residential Tenancy Act 2010:

- A copy of the condition report provided by the landlord, a residential tenancy agreement or SDA service agreement should be provided to the tenants.
- The premises should be rented to in a clean and fit to live in state.
- Rent receipts should be given if there is not a nominated account for the rent payment.
- At least a specific method of payment should be provided to the tenant.
- Any increase in the rent should be followed with a 60 days prior written notice.
- The landlord/agent is not liable to interfere with the possession of premises.
- Tenants should have a proper comfort and privacy.
- Premises should be safe and provided with lock and reasonable security.
- Any urgent maintenance undertaken by the tenant as is up to $1000 should be reimbursed as soon as possible.
- Landlord must give a notice for any change or termination of tenancy agreement.
- Any change in the name and information of the landlord will be notified to the tenant.
- Not to be unlawfully evicted.

✓ Tenants' rights under NDIS Code of Conduct is as follows:

- Freedom of expression, self-determination and expression
- Privacy
- A competent and safe support provision
- Any issues related to the received services should be raised and correct actions by **One Life Foundation** should be undertaken promptly
- Living in a free from violence, exploitation, neglect, abuse and sexual misconduct

6.5.2. Number of Residents

✓ **One Life Foundation** is subject to the following conditions:

- (a) **One Life Foundation** ensure that no more residents are housed in an SDA dwelling than the number for which the dwelling is enrolled; and

- (b) in the case of dwellings that are enrolled to house more than five long-term residents on the basis that the provider is a participant providing SDA to themselves, **One Life Foundation** must not house any resident in the dwelling other than the participant's spouse or de facto partner and children.

6.5.3. Identifying Potential SDA Tenants

✓ It is Participant's right to visit and then choose their new home. If any of the tenants wish to visit the property, **One Life Foundation** will welcome them and will provide them with a tour guiding them about the property. We will make sure that the new visit has the least disruption to the existing tenants with setting the inspection time in an arranged time.

✓ **One Life Foundation**'s criteria to be eligible for SDA service are as follows:

- A Participant who has the SDA included in their NDIS plan
- The participant's needs are being met with the appropriate support arrangements in place.

✓ The potential SDA tenants will be identified by **One Life Foundation** via:

- Receipt of Expression of interest (e.g. via the website)
- Upon provision of a referral from another disability Service Providers, including support coordinators
- Through attendance at disability service forums
- Through referrals from advertising activities
- Direct contact from hospitals, rehabilitation centres, and aged care providers

6.5.4. Legislative Guidelines

We will ensure that our properties meet the requirements and obligations set out in the legislation as well as NDIS guidance including the following:

- **National Disability Insurance Scheme (NDIS) Act 2013**
- **National Disability Insurance Scheme (Quality Indicators) Guidelines 2020**
- **National Disability Insurance Scheme (Specialist Disability Accommodation**

Conditions) Rule 2018

- rules and instruments made under the NDIS Act and the NDIS Quality and Safeguards Commission
- relevant state and territory legislation, including applicable codes and standards.

6.5.5. Assessment of Potential SDA Tenants

✓ **One Life Foundation** will works through an assessment proforma to assess potential eligibility of a participant and SDA facilitator in consultation with the participant, their family and their SDA provider if the NDIS participant who has expressed their interest in SDA, but it is not included in their existing plan yet.

✓ New tenants must be suitable with the existing tenants and there should be a balance between their needs when filling vacancies. Resident Support needs and the SDA model are to be compatible with the needs of new and existing tenants.

✓ If **One Life Foundation** has assessed the participant as likely to be eligible for SDA, in relation to their housing goal, will be supported in the development and revision of their NDIS plan.

6.5.6. Advertising Vacancies in SDA Properties

✓ **One Life Foundation**'s vacancies are promoted via:

- Some websites like Housing Hub or Go Nest which provide services to the participants who SDA is included in their plan to match them with the SDA providers.
- Through **One Life Foundation**'s website.
- Contacting people who has expressed interest in the SDA services of **One Life Foundation** to discuss their suitability and accommodation options.
- Marketing activities (e.g. Disability Expos).

✓ When a new SDA property of **One Life Foundation** is confirmed for accommodation, advertising will be undertaken (e.g. construction commenced, accommodation purchased, or long-term accommodation leased).

✓ If there is any vacancy in place for an existing SDA property, **One Life Foundation** will undertake an advertisement.

✓ **One Life Foundation** should ensure the availability and accuracy of information about the

dwelling so that participants have sufficient information to determine whether to apply. This includes:

- ✓ The SDA type (design category and building type)
- ✓ Features of the house
- ✓ The general location of the SDA including proximity to amenities such as public transport
- ✓ Basic and de-identified information about any existing residents, such as gender and age mix
- ✓ A description of the application process such as key dates, open inspection times and application process
- ✓ Specialist support features

6.5.7. Notifying the National Disability Insurance Agency (NDIA) Of Vacancies

✓ Vacancies should be reported to the NDIA within 5 business days, specially where:

- A vacancy notice from a participant is received
- Upon giving a notice to the participant by **One Life Foundation**
- When a participant dies
- Any vacancy happens for any other reason.

6.5.8. Allocation of SDA Housing

✓ A successful and sustainable tenancy will be provided by **One Life Foundation** upon matching participants with properties that:

- Match the needs of the participant
- Provide the services to the participant to access specialist support services
- Supporting the participant with meeting their NDIS plan's goals and objectives
- Take the best advantage of the available housing

6.5.9. Tenant Selection

✓ The needs, wishes, choices and situations of participants will be considered for filling the vacancies in SDA dwellings.

- ✓ In filling the vacancies, all impacts of new tenant on the wellbeing and quality of life of the current as well as new residents will be assessed. The potential benefit of the potential tenant will be considered and ensuring that the services will meet their requirements.

- ✓ The following criteria are used for the suitability of the potential tenants to fill the vacancies:

    - Cultural background
    - Support needs including:
    - Personal support
    - Self-management
    - Activities of daily living
    - Mobility
    - Communication skills
    - Behaviours of concern
    - Personal interests.
    - Age
    - Gender

6.5.10. Disability service Provider (including SIL Providers) selection and management

- ✓ **One Life Foundation** and other service providers have their own roles and responsibilities in providing services to the participants.

- ✓ As such, the **One Life Foundation** as an SDA registered provider will provide dwellings for NDIS Participants with SDA in their plan and will manage the tenancy related services including:

    - Collection of rent
    - Maintenance of property
    - Modification of property if required.

- ✓ Other service providers will be engaged to provide necessary supports to residents. These supports may include:

    - Assistance with activities of daily living (Supported Independent Living)
    - Transport
    - Leisure activities
    - Household tasks

- Behaviour management and support.

✓ Disability support workers may require providing services either on a visiting basis or 24/7 basis depending on the participant plan and requirements.

✓ A participant requires to have separate service agreement with SIL provider or any other disability service provider along with having a service agreement with SDA provider. It is participants right to choose their own service providers including SIL providers regardless of relationship between SDA Provider and SIL providers. The tenant has the security tenure in **One Life Foundation**'s property irrespective of their decision about their service providers including SIL Providers.

✓ **One Life Foundation** may enter into a formal partnership agreement with a disability service provider. Where a formal partnership is formed with the disability service provider including SIL providers, a written agreement will be signed between both parties to outline their roles and responsibilities.

✓ A partnership may be formed between **One Life Foundation** and disability support providers to:

- To find a suitable housing solution for the disability service provider's participant
- To establish a preferred provider arrangement for example, to choose a Supported Independent Living Service provider
- To source the SDA tenants for its own property

✓ This agreement will not override the agreement with individual SDA tenant's right to choose their own preferred service provider and to change their SIL providers.

6.5.11. Conflicts

✓ We work proactively to manage conflicts and avoid them in the first place. These practices are as follows:

- Interest of participants are the priority for us
- Participants and their families will be engaged constructively
- Transition planning is in place
- Participants and their families are always included in the communications.

✓ To prevent conflicts the methods of communication should be agreed in the first place. It should be clear that who is the contact person in the participant's family for any concerns

about the participant's health, safety. Early resolution is the best response to the conflicts.

- ✓ A third-party mediator may be required if the conflicts are not resolved although there are some best efforts are made to resolve it. In this case, the local state or territory justice service may be contacted to assist in mediation.

6.5.12. New Developments

- ✓ For each new dwelling, **One Life Foundation** will discuss with the potential SDA tenants individually. The participants with SDA in their support plan who need to live in the new developments are the potential SDA tenants.

6.5.13. Offers of Tenancy

- ✓ All SDA offers will be made formal in both writing and preferred communication method defined by the client.

6.5.14. Withdrawal of Offers

- ✓ The applicant will be notified by the SDA provider if the application is withdrawn for any reason and a full explanation of the reason will be provided to the participant.

6.5.15. Accepting an Offer/Filling a Vacancy

- ✓ A period of 14 days will be provided to the clients who have received tenancy offer to confirm the acceptance of the offer. If the offer is accepted, they will need to sign an **Form46.SDA Service Agreement** and **Form48.Tenancy Management Agreement.**

- ✓ If required, the tenancy agreement will be described verbally to the tenant in a mode of communication that is understandable for the tenant. Advocate or Translator can be provided upon request.

6.5.16. Before Moving in

- ✓ Prior to occupancy, a copy of the **Form46.SDA Service Agreement** and **Form48.Tenancy Management Agreement.** will be signed by **One Life Foundation** and the tenant or their authorised representative as well as a copy of the premises condition report.

6.5.17. Information for New Tenants

✓ The participant Handbook will be handed to the new tenant. Safety and security items of the doweling will be discussed with the tenant.

6.5.18. Shared Housing

✓ A shared housing is the tenancy that has a number of bedrooms. In such cases, each tenant will be treated as an individual tenant if the vacancy is in a shared housing. It means, each tenant will receive a Service Agreement for the bedroom and access to the common areas.

6.5.19. Service Agreement for SDA Tenants in Enrolled SDA Dwellings

✓ All services will be provided according to the service agreement. In addition:

- Updates will be provided to the participants regarding their access to services, details of services and the amount they have been charged for the provided services.
- For GST purposes, the service agreement will be consistent with the guidelines and tax requirements as well as NDIS pricing arrangements.
- Information related to the complaint handling and dispute resolution will be included in the service agreement.
- If the participant plan's fund is self-managed, the cost of services, the time services will be provided as well as the method of payment should be clearly mentioned in the service agreement and a timeframe will be provided for the termination notice(14 days minimum) or some additional time will be provided if it is required to find some other service providers to provide the services to the participant.

✓ The House Rules are intended to support people to live together and to ensure the housing complex is one where every resident's privacy and lifestyle choices are respected, and they are free from violence, abuse, neglect and discrimination.

✓ Provision of a well-managed home is essential to us and we are committed to work with each participant who are living in our properties. The following guidelines is applicable to all of our services and workers:

- An efficient tenancy management system will assist us in supporting our tenants
- A positive impact will be provided to the community participants with disability

who require homes through our tenancy management system and home provision.

- If there is any issue including a breach of tenancy agreement from each party, we will try to support participants through building positive relationships and sustaining their tenancy before deciding to terminate the agreement.
- All the tenants and workers should be aware of their roles and responsibility as well as their rights which is included in the service agreement.
- Diversity is valued in our organisation and we are committed to provide equal opportunities across all of our properties and will ensure that all tenants are treated fairly, with respect and professionalism.

6.5.20. Behavior of Concern

✓ Behaviors of concern are the ones that it is very difficult to see any reason behind that behavior.it is sometimes called 'Challenging or complex behavior' too. These types of behaviors are not acceptable by people and/or are usually hard to understand. Examples of Behavior of concern include:

- Physical or verbal aggression
- Self-injury
- Property destruction
- Impulsive behavior
- Hyper-sexuality
- Aggressive behavior
- Hurting other participants
- Refusing to do thing
- Making loud noises that bothers other tenants

✓ For managing conflicts between tenants, the following actions will be taken:

- Ensure that tenants take all actions related to the service agreement
- Encourage tenants to put some ground rule to avoid conflicts
- Communicate those house rules to the new tenants
- Ensure that everyone participates is involved in the decision-making process
- Ensure that tenants can communicate their concerns
- Ensure that **One Life Foundation** will not take any sides in conflict resolution
- Ensure that **One Life Foundation** will participate in conflict management and facilitate mediation
- Ensure that the issue is clarified, and resolution are offered
- Ensure that those resolutions are in place

6.5.21. Conflict Management

✓ For preventing any conflicts between tenants, we will:

- Ensure that tenants are aware of their responsibilities under their tenancy agreement
- Ensure that the house rules are in place and all tenants have agreed to them
- Ensure to communicate all of the house rules to the prospective tenants prior to moving in
- Ensure that all decisions affecting the tenants are made in consultation with the tenants and their supporters
- Ensure that areas of concerns are discussed with the tenant and there is a communication mode in place such as meetings or written notices
- Ensure to avoid taking sides if any conflict happens
- Facilitate the mediation and clarify the issues if any conflict occurs and will ensure that resolutions are followed up.

6.5.22. Concerns and Feedback

✓ **One Life Foundation** will ensure that:

- The tenants and their family speak up their problem
- Tenants are supported to provide feedback
- Feedbacks are treated confidential
- All feedbacks are reviewed
- People who provide feedbacks is protected from any unfavourable treatments
- Emergency repairs will be arranged as soon as possible

6.5.23. Responsibilities of the Key Management Personnel

- Ensure that the workers are trained and there is a training in place for supporting the tenants
- Ensure that vacancies are reported to the NDIS
- Ensure that all workers comply with policies and regulations
- Ensure that the most suitable person is chosen for the vacancies
- Ensure that a proper tenancy management is in place

6.5.24. Responsibilities of the Workers

- Have the required skills and training for support provision in a way that they can maintain their tenancy agreement
- Ensure that the performance targets are in place for each of the properties
- Ensure that the tenancy agreement is in place and implemented
- Have the knowledge and skills of tenancy management
- Ensure that participants are moving toward their goals by the consulting, listening and responding to the tenants and working with the support independent living providers following the **Form66.SDA & SIL agreement**

6.5.25. Emergency Repairs

Participants are encouraged to contact their contact person if there is any emergency repair required and we will contact the property manager as soon as possible. Emergency repairs could be as following:

- Serious storm or fire damage
- Serious roof leak
- Electrical fault
- Blocked toilet
- Any maintenance that may pose a person in a risk of harm

6.5.26. SDA Property Modifications

6.5.26.1. Types of Modifications

✓ There are two groups of modification: minor and major.

1- Minor modification are the non-structural works like following:

- Grab rails
- A hand-held shower
- Lever taps

2- Major Modifications are the works that involve structural changes, such as:

- Widening doorways
- Access ramps
- Changing the kitchen, bathroom or laundry
- Replacement of floor coverings
- Work that requires a Development Application (DA) approval

✓ **One Life Foundation** will review the following options before approving modifications:

- The needs of the current and future tenant should be met through assessment of modification
- For completion of the requested work, the financial resources should be considered.
- Long term value of the property
- Alternative options' cost
- More suitable accommodations and available alternatives
- The possibility of relocating the tenant and its benefits

6.5.26.2. Requests for Modification

✓ **New Tenancies**

- The required modification for the new tenant will be determined in consultation with the tenant, their support providers, workers as well as other agencies.

✓ **Existing Tenants**

- A request for property modifications will be provided by the tenant and supporting documents will be supplied.
- For minor modifications only some supporting document including medical certificates or a report from a health practitioner should be included.
- An occupational therapist report must be accompanied if a major repair is required.

6.5.26.3. Assessing Requests for Modifications

✓ **New Tenancies**

- Upon receipt of the confirmation about the needs of the tenant from a health care professional, **One Life Foundation** will do the modification without any cost to the tenant, if it is viable to do so.

✓ **Existing Tenancies**

- Upon the receipt of the modification application and supporting documents from the tenants, **One Life Foundation** will assess the application with the below considerations:

- Ensuring that the tenants can keep their tenancy status if the maintenance is undertaken
- Considering the economic requirements of this modification.

✓ The property will be inspected by **One Life Foundation**'s staff, the tenant, support service provider and/or relevant support person for ensuring that the property I modifiable if the proposed changes are accepted and deemed feasible.

6.5.27. Sustaining Tenancy

✓ We will support tenants to maintain their tenancy.

✓ An initial risk assessment needs to be done to identify the requirements of each tenant and ensure that those are met in rooms. For example, independent living supporters will be contacted to ensure that they are satisfied with the services to reduce the possibility of ending an agreement.

✓ A meeting will be held with the tenant, their supporters and NDIS or Support Coordinators if we wish to terminate an agreement in the first two years in order to make sure that we have discussed all options to support the tenant to maintain their tenancy agreement.

6.5.28. Tenancy Inspections

✓ Regular inspection using **Form47.SDA Inspection Checklist ,** will be done to ensure that:

- The property is well maintained
- There is no requirement for any repairs
- All applicable building codes and laws are met, and all required certifications are in place.

✓ An attestation using **SDA Attestation Form** will be submitted to the NDIS annually that all our properties are in a good state of repair and well maintained and abide by all safety and security rules as well as privacy of tenants.

✓ Participants will be provided with a notice prior to any inspection.

6.5.29. Visitors

- ✓ Anyone who is visiting the tenant and will stay up to four weeks is deemed as visitor. The tenant should write to **One Life Foundation** if they wish to extend their visitors duration of stay any time before 4 weeks is due and as soon as possible the following occurs:
    - An extension of visiting should be applied to **One Life Foundation** by the tenant if the visitor stays longer that 4 weeks.
    - If the visitor has stayed longer than 4 weeks, the tenant must apply for additional occupants to be approved.
    - There is no need to pay any extra fee for the visitors' stay that is less than four weeks.

- ✓ The responsibility of the visitors' behaviour is with the tenant. According to the conditions of the agreement, tenants must abide by the obligations and condition including their own behaviour as well as their visitor's behaviour.

6.5.30. Assessing Requests for Additional Occupants

- ✓ If any approval for the additional occupant is required, the tenant needs to contact **One Life Foundation.**
- ✓ If a request for additional occupant is received to a rented SDA dwelling, **One Life Foundation** will ensure that it is compliant with the National Disability Insurance Scheme (Specialist Disability Accommodation Rules) 2018. It should also be ensured that the number of people in the dwelling are not more than the number enrolled in the service agreement.

- ✓ Application for an additional occupant may be considered under the following circumstances:
    - The rent account of the tenant is up to date
    - Overcrowding will not be caused upon approval of the application
    - The tenant will not be able to apply for rehousing because of overcrowding caused by additional occupant.
    - Resulting density complies with the density restrictions in the NDIS (Specialist Disability Accommodation Condition) Rules 2018;
    - The additional occupant has a good record of tenancy
    - The additional occupant is not an ineligible former tenant
    - Any nuisance or annoyance caused by approving the additional occupant, will not

be accepted
- The type of property is suitable for the new household arrangement
- The additional occupant does not owe any money to One Life Foundation from a previous tenancy, or has made acceptable arrangements to repay the debt to **One Life Foundation**
- If any tenancy agreement with another social housing provider is finalised.

✓ **One Life Foundation** keeps the right to accept or decline any additional occupant. After approval, based on the new household income, **One Life Foundation** will calculate the rent. Within 20 working days of the outcome of the application, the tenant will be notified.

✓ It is the occupants right to complaint if the application is declined.

6.5.31. Failure to Notify One Life Foundation of an Additional Occupant

✓ If the tenant allows another person to live in the property who is not listed with One Life Foundation, that occupant is a non-approved additional occupant including the visitors who live in the property without approval and for more than 4 weeks.

✓ **One Life Foundation** reserves the right to do the following if believes that there are non-approved additional occupants living in the property:

- According to the rent payments, charge an additional payment
- Terminate the tenancy agreement.

6.5.32. Feedback and Complaint Policy

✓ The Best practices and continuous improvements that are promoted by the **management team**, create a supportive and respectful culture in **One Life Foundation** that supports the workers, stakeholders and participants to be open to make complaints and feedback and report any issues. In the performance assessment of the **management team**, this will be assessed and reviewed.

✓ **One Life Foundation** is committed to handle all complaints and feedback until it is resolved completely.

✓ The information related to the complaints and feedback will be dealt confidentially in a way those are discussed directly with involved people.

- ✓ If the consent has been provided, a third party would be able to lodge complaints and feedback on behalf of another person.
- ✓ Any ongoing issue could be identified by tracking and analysing feedback and complaint data. As a part of the continuous improvement process, the feedback, complaints and dispute resolution will be discussed in **management team** meetings regularly.
- ✓ Information about this policy & Procedure will be shared with any participant or stakeholder wishing to lodge feedback.

6.5.33. Complaint Handling (Easy Read version)

- ✓ **Quality is about receiving good services that:**
  - meet the needs of participant
  - give people with disability choice and control.
- ✓ **We make sure our worker:**
  - give good quality services and supports
  - keep people with disability safe
- ✓ **We protect any personal information people give us – we keep your information private.**
- ✓ **You can complain about your services and supports when:**
  - something has gone wrong
  - something is not working well
  - something has not been done the right way
  - something makes you unhappy
  - you have been treated badly.
- ✓ **What do we do about complaints?**
  - We listen to complaints
  - help people fix their complaints
  - teach worker about the best ways to handle complaints.

✓ **How do you make a complaint to us?**

- You can call us OR email us
- You can call us between 9am and 5pm, Monday to Friday.

6.5.34. Feedback and Complaint Management

✓ In the workers induction, all workers will be trained in this policy & Procedure to provide the stakeholders with the information related to the feedback, complaints and compliments.

✓ Continuous improvement is an important part of the team meeting agenda covering workers and participant feedback and complaints.

✓ If requested by workers, this information will be provided to them and will be displayed in **One Life Foundation**'s premises at all time.

✓ A variety of format including an easy English version as well as translated versions of the information related to the feedback and complaints will be provided to stakeholders including workers and participants. Interpreters and referrals would be available, too.

✓ Workers will provide all participants, their families and carers with information when they first access the service and, throughout service delivery, remind them of the policy and their right to make a complaint without fear of affecting their service.

✓ All participants, their families and carers will be provided with the information of policies & Procedure and their right to make complaints in the commencement of service as well as throughout the service delivery by **One Life Foundation** workers.

✓ The roles and responsibilities of the workers when a complaint is received as well as their awareness of the policy & Procedure will be assessed in the performance reviews. If required, additional in-house training, on the job training and formal training will be provided. Managers and supervisors will be monitoring this.

✓ The general principles guiding actions under the NDIS Act also describe the rights of people with disability to:

- Realise their potential for physical, social, emotional and intellectual development.
- Be supported to participate in and contribute to social and economic life to the extent of their ability.
- Be supported to exercise choices in relation to taking reasonable risks in pursuit of their goals and the planning and delivery of their supports.
- Be respected for their worth and dignity and to live free from abuse, neglect and exploitation.
- Be able to determine their own best interests, including the right to exercise choice and control to engage as equal partners in decisions that will affect their lives to the full extent of their capacity.
- Have their privacy and dignity respected.
- Have the role of families, carers and other significant persons in their lives acknowledged and respected.
- Have access to advocates and supports which promote innovation, quality, continuous improvement, contemporary best practice and effectiveness.

6.5.34.1. Feedback Management Process

✓ Any stakeholder will be able to provide feedback at any time through:

- A worker
- Management team
- Public email address
- Mail
- Phone contact

✓ A **Form03. Improvement Report** will be completed by the receiving worker or the **management team** if the feedback is provided verbally.

✓ Support and assistance (e.g. involvement of a support person, interpreter or advocate) will be provided to people who should participate in the feedback mechanism if required.

6.5.35. Complaints Management Process

6.5.35.1. Receive and Record

✓ For an easy resolution without recourse to the Procedure of complaint management,

individuals are encouraged to contact **One Life Foundation** to lodge a complaint.

- ✓ **One Life Foundation** will handle all complaints until it is resolved completely.
- ✓ The complaint could be made by individuals at any time to the NDIS Commission, the Health and Community Services Commissioner.
- ✓ Individuals could use an advocate of their choice if they like to act on their behalf. The advocate could be a family member or friend or sourced from the National Disability Advocacy Program.
- ✓ Workers will:
    - **Listen** – openly and nicely to the complaint and the raised issue.
    - **Ask** – what is the outcome that the complainant is seeking.
    - **Inform** – the complainant about the complaint process, timing and realistic expectations.
    - **Be accountable** – a show empathy toward the complainant or affected person and ensure that all commitments are made.
    - **Assess** – the situations that cause any danger or require any specialised response.
- ✓ As the first step of complaint resolution, the **management team** will discuss the complaints with the other party involved in the complaint.
- ✓ The complaint will be treated as a formal complaint if it cannot be resolved in a prompt way within a proper timeframe. If the individuals are not aware of their rights, the workers should advise them how to lodge a complaint and assist them properly if they wish.
- ✓ A complainant needs to lodge a complaint using the **Form02.Complaint Report Form.**
- ✓ Formal complaints can be lodged:
    - either verbally or by sending a completed **Form02.Complaint Report Form**, in direct contact with a worker
    - by email
    - Face to face with workers or **management team**
    - by phone

- in writing

✓ Individuals could use an advocate of their choice if they like to act on their behalf. The advocate could be a family member or friend or sourced from the National Disability Advocacy Program.

✓ The complaint will be referred to the **Managing Director** if it alleges an actual or possible criminal activity, abuse or neglect. As per this policy & Procedure, the Managing **Director** will report the complaint to the NDIS and any other relevant authority for further investigation.

✓ The **management team** will:

- **Record –** all information that is relevant to the compliment or complaint, in its original and simplest form. Complaint records shall be kept for seven years from the day the record is made. Complaints are confidential.
- **Store and Protect** – for more security, the complaint reports would only be accessible to relevant people.

✓ The management **team** will:

- **Acknowledge** – complaints are received within two business days to create a confident and trustworthy relationship with the complainant.
- **Provide anonymity** – If someone requested to be anonymous in their complaint application, their contact might not be accessible.
- **Seek desired outcomes** – It is important to be realistic in handling complaints. It means if required, the case should be referred to a suitable organisation to handle.
- **Avoid conflict of interest** – An independent investigator to the matter should be assigned, if necessary.
- **Provide timeframes and expectations** to the complainant where possible.

6.5.35.2. Resolve

✓ In resolving a complaint, **One Life Foundation** will:

- **Involve the complainant –** with Informing them about the status of their complaint and discuss any miscommunicated information with them using **Form03. Improvement Report Form**

- **Request additional information** – if required and limit the timing by applying a time frame.
- **Consider extensions** – Only if there is any additional time required, with the provision of the explanation, communicate it to the complainant.
- **Record** – all actions and feedbacks regarding the complaint investigation in the **Form03.Improvement Report Form**
- **Focus** – on the identified complaint matters only. A complaint is not an opportunity to review a whole case.

✓ For the purpose of investigation and resolution, the **management team** will refer the complaint to the **Managing Director**, if they cannot resolve it.

✓ Investigation of complaints will not be conducted by a person about whom a complaint has been made. If required, the **management team** will determine the appropriate person to undertake the investigation.

✓ The **management team** will determine the appropriate person for the complaint investigation.

6.5.36. Communicate Resolution

✓ All complaints should be responded by **One Life Foundation** as soon as possible within 28 days from acknowledgment.

✓ An update to the complainant is required within 28 days if the complaint cannot be resolved in full. The date by which full response can be expected should be provided to the complainant. The response could be provided verbally in the first instance, but it shall be confirmed in writing.

✓ Any misunderstanding regarding the complaint could be supported by someone from **One Life Foundation** if required. (e.g. interpreters, referral to advocates, etc.).

✓ Complaint resolution should include:

- **Acknowledgement** – of how the person is affected by the situation and what is their expectation of quality service
- **Apology** – In some cases can be a proper resolution or partial resolution to what people have suffered

- **Answers** – The information needed for addressing people's concern or an explanation of what is happened; and
- **Action** – Agreement on actions that will make the concerns and service improvements

✓ Options for actions responding to a complaint include but are not limited to:

- explaining processes
- rectifying an issue
- providing an apology
- ongoing monitoring of issues
- training workers.

✓ Also, the below actions can be done:

- Before providing written advice, the outcome could be discussed verbally (if Possible) and further contact will be allowed after the receipt of the advice for conflict resolution.
- At the completion stage of the complaint investigation, the further action available to the complainant should be recorded. Another possible action could be to escalate the situation with an external agency or further revision within the organisation.
- Providing additional information that is not included in the first complaint as well as reviewing the soundness of the first investigation through further review.
- Opportunities will be identified from the complaint outcomes and distributed to the appropriate parties for the purpose of ongoing improvement.
- Feedback from the complainant about the process should be sought.

6.5.37. Monitoring and Review

✓ Following mechanisms would be followed by One Life Foundation for measuring participants and stakeholders' satisfaction:

- For the purpose of receiving suggestions for improvement and assessing whether the participants are aware of their rights, regular participant's feedback will be obtained.
- **Management team** meetings may involve participants and other stakeholder representatives

- ✓ The feedback, compliment and complaint system will be used to ensure continuous learning and accountability is in place by:
    - Identification of opportunities for improvement as a result of a complaint
    - Feedback analysis to monitor the service performance trends evaluation and identify improvement opportunities; and
    - Continuous improvement plan assists in how the outcome of feedback is communicated with stakeholders. Positive feedback will be recorded for well-done activities.
- ✓ This Procedure will be reviewed annually.

6.5.38. Complaints Escalation and Dispute Resolution

- ✓ In case, if **One Life Foundation** could not satisfy the complainant, details of another agency will be provided to assist them in achieving the resolution.
- ✓ All complaints, including the escalated complaints, will be tracked from the same kind of report and the same method of communication will be applied.
- ✓ A complaint can be made to the NDIS Commission by:
    - Phoning: 1800 035 544 (free call from landlines) or TTY 133 677. Interpreters can be arranged.
    - National Relay Service and ask for 1800 035 544.
    - Completing a complaint contact form.

6.5.39. Incident Management Process

Step	Who
1. Incident occurrence 3- Any incident needs to be reported to the manager or supervisor, including near misses. 4- In the event of an incident, injury or illness, where it is safe to do so **One Life Foundation** will take appropriate immediate action to minimise the risk of further injury or damage.	**All workers and Participant**

Step	Who
5- Preventive actions from further harm or injury will be taken, where appropriate. As a part of the investigation, until its end, the incident scene and evidence need to be preserved. (Due to assisting an injured person, making the area safer, streamlining the police investigation or removing the deceased person, the site may be disturbed.) 6- Inspecting and confirming that no new hazards have been created whilst securing the area 7- If any medical treatment is needed beyond first aid, the Safety representative will be informed relevant person immediately by phone or email.	
2. Determine whether the incident is work-related 8- Any incident happened by the contribution of an event in the work environment, will be determined as work-related. In addition, if any pre-existing injury or illness aggravated by an event in the workplace will be determined as work related too. Also, if the incident is in connection with the provision of NDIS supports or services by the provider.	**Safety representative**
3. Severity Determination 9- According to the severity of the incidents' consequences, those will be classified as follows: • fatality • permanent injury • lost time • restricted work • medical treatment beyond first aid • first aid treatment • hurt • near miss 10- The accident will be classified as the most sever if there are more than one consequence applicable to that incident.	**Safety representative**

Step	Who
4. Injury or illness determination 11- If there is a wound or damage to the body resulting in an incident. 12- If any illness is caused by an incident in an abnormal health condition which impairs physiological function.	**Safety representative**
5. Recording the incident 13- An **Form04.Incident Report Form** should be completed for all incidents and near misses if: • the injured person is within the scope of provider or participant, and • the incident is related to the service or support provided Incident records shall be kept for 7 years from the day the record is made.	**Safety representative**
6. Incident Investigation 14- The incident needs to be investigated as soon as possible or within 24 hours if its severity is a medical treatment (beyond first aid) or higher like work restriction, permanent injury or fatality. 15- As a minimum, any first aider, witness and the injured person should be involved in the investigation. 16- Investigation reports should be recorded in a **Form04.Incident Report Form**.	**Safety representative**
7. Corrective actions Revision 17- The corrective actions shall be checked whether those are appropriate and will be preventive or not. 18- In case those actions are not appropriate, should be discussed with the relevant people.	**Safety representative**
8. Effectiveness Evaluation 19- The corrective actions should be evaluated to ensure that they are addressing the root cause of the incident and will prevent a recurrence. 20- This evaluation should be recorded in the **Form04.Incident Report Form**.	**Safety representative**

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Step	Who
9. Revision of data for continuous improvement 21- Look for further opportunities in the improvement of information and trends at least every 12 months. 22- The incident management policies and procedures, the causes, handling and outcomes of incidents, seeking of participant and workers views, and incorporation of feedback will be reviewed annually.	**Safety representative**
10. Report Notifiable Incident Incident notification process consists of 3 steps. These steps are as follows: Step 1: Notify the NDIS Commission: 23- Safety representative is responsible for reporting incidents that are reportable incidents to the Commissioner. In addition, any key personnel can notify Commissioner of reportable incidents. 24- A notifiable incident shall be reported as soon as possible. The following information is required to be registered in the incident report form: • the name and contact details of the registered NDIS provider. • a description of the reportable incident (a description of the impact on, or harm caused to, the person with disability) • the immediate actions taken in response to the reportable incident, including actions taken to ensure the health, safety and wellbeing of persons with disability affected by the incident and whether the incident has been reported to police or any other body • the name and contact details of the person making the notification • the time, date and place at which the reportable incident occurred (if known) • the names and contact details of the persons involved in the reportable incident 25- For an incident to be reportable a certain act or event needs to have happened (or alleged to have happened) in connection with the provision of supports or services by the registered NDIS provider. This includes: • The death of a person with disability • Serious injury of a person with disability	**Safety representative**

Step	Who
• Abuse or neglect of a person with disability • Unlawful sexual or physical contact with, or assault of, a person with disability • Exploitation and any kinds of discrimination of the person with disability • Sexual misconduct, committed against, or in the presence of, a person with disability, including grooming of the person with disability for sexual activity 26- **One Life Foundation** will submit a notification form via NDIS commission portal within 24 hours, if any above incidents occur. 27- Commissioner shall be provided with the following information within 5 business days after the provider became aware that the incident occurred: • the names and contact details of any witnesses to the reportable incident • any further actions proposed to be taken in response to the reportable incident 28- If an unauthorised restrictive practice is used, NDIS should be notified in 5 business days of being notified of the incident. However, the incident should be reported in 24 hours if the incident has resulted in injury to a disabled person. 29- In cases where there is a need for police intervention, even after consideration of the incident, it should be reported as soon as possible. If there is any uncertainty about whether the incident needs to be reported or not, the notifier or approver should contact the NDIS Commission to seek further advice. 30- **One Life Foundation** will also inform: • Authorities for notifiable work-related injuries, fatalities or dangerous occurrences • Police if the incident relates to the death of a person 31- Where an incident is referred to NDIS, the NDIS investigation takes precedence over any organisational process.	

Step	Who
32- The progress of the incidents, accident and near misses will be tracked in incident report form. 33- **Step 2:** Submit a 5-business day form: this form should be submitted via "My Reportable Incidents" portal in 5 business days after key management personnel are notified. Some additional information, including the corrective actions, is recorded in this form. any unauthorised use of restrictive practises is recorded by this form. 34- **Step 3:** If required, the final report should be submitted: If this is required, the NDIS Commission will contact the provider and advise the due date for this matter. The final report field will be accessible on the NDIS Commission portal if the provider requires to submit a final report.	

6.5.40. Review and feedback

For continuous improvement purposes, feedback about our accommodation can always help us. We encourage the participants, their supporters, workers and all staff to provide feedbacks in several ways. During the induction process in the first day, is provided to the participant and their supporter/s and is available in the dwellings as well.

During the tenancy review feedbacks will be obtained from customers. It doesn't matter how small the concern is, it is important to us and can help us to improve our services.